

OREGON STATE HOSPITAL

POLICY

SECTION 7: Patient Rights

POLICY: 7.017

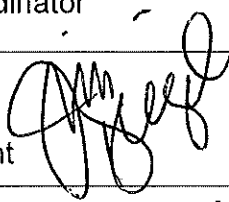
SUBJECT: Native Artifacts and Property

POINT
PERSON: Native Services Coordinator

APPROVED: Jim Diegel

DATE: 10/30/2025

Interim Superintendent



SELECT ONE: ☐ New policy proposal

☒ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) respects every patient's right to believe, express, and practice their own faith. Patients do not have to be members of a Native Tribe to take part in Native ceremonies, traditions, or practices offered through the Native Services Department.
- B. This policy applies to all OSH staff.

II. POLICY

- A. OSH recognizes that giving patients access to culturally and spiritually appropriate services helps their recovery.
- B. Patients may take part in Native ceremonies, traditions, and practices in a way that feels right to them. This may include using Native artifacts.
- C. Examples of Native artifacts include:
 - Eagle feathers (following federal regulations and tribal laws — eagle wings and bodies are not allowed)
 - Medicine bags
 - C'anupa (ceremonial pipe)
 - Sage, Cedar, Lavender, Sweet Grass, and Mugwort
 - Beads and jewelry
 - Religious or spiritual books
 - Medallions and pendants
 - Clothing and head coverings
 - An altar

D. Within the limits of safety and resources, OSH will:

1. Act with and follow OSH policy 7.011 Faiths, Beliefs and Practices, as well as any applicable tribal, federal, and state laws regarding religious, spiritual, and cultural practices;
2. Consult and collaborate with the Native Services department to purchase artifacts recognized by Native communities or tribes for patients to use during ceremonies and other practices.

DI. Staff authorized by the Native Services Coordinator are expected to attend and support patients' cultural needs by performing any or all of the following functions related to Native, Alaskan Native, and other Indigenous tribal and cultural items:

1. Helping patients use Native or Tribal artifacts correctly, alone or in groups. Helping patients order, receive, or send sacred items. Patients who want to order sacred items must work with Native Services staff, get approval from the Native Services Coordinator or designee, and follow purchasing steps.

DII. Patients who want to mail sacred items may ask Native Services staff with packaging and mailing. All sacred items must be handled with care and respect.

- Staff must work with the Native Services Coordinator or designee for proper handling, search, and storage. If sacred items must be stored, Native Services staff will assist with this process.
- Sacred items should only be taken away if they contain contraband or the patient refuses a search.
 - a. If a medicine bag contains contraband or cannot be searched, it may be confiscated.
 - b. Confiscation must involve the Native Services Coordinator and OSH Security staff.
 - c. The treatment team must work with Native Services before returning items.
- If sacred items must be searched, the Native Services Coordinator or designee must be present.
 - a. Staff may wear protective equipment if needed, following OSH policy 8.031.

DIII. Inter-Tribal Sweat Lodge Ceremony is a deeply spiritual practice rooted in Indigenous traditions that is practiced at Oregon State Hospital.

1. Sweat Lodge uses an interdisciplinary approach requiring the patient, Native Services Coordinator, Interdisciplinary Treatment Team (IDT), medical

practitioner, psychiatric practitioner, and RN to foster safe participation in this spiritual practice.

- H. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- I. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS (SEE GLOSSARY)

IV. PROCEDURES

Procedures: A Search of a Sacred Item or Artifact

Procedures: B Native Services Inter-Tribal Sweat Lodge Ceremony

V. RELATED OSH POLICIES AND PROTOCOLS

1.001, "Policy System at OSH"

7.001, "Mail and Packages for Patients"

7.011, "Faiths, Beliefs and Practices"

8.037, "Patient Property and Valuables"

Security Protocol 5.006, "Evidence Handling and Chain of Custody"

Security Protocol 5.011, "Intake and Admission Procedure" Treatment Services

Protocol 3.108 Native Services Inter-Tribal Sweat Lodge Ceremonies

VI. REFERENCES

42 U.S.C. § 2000bb-2000bb-4

U.S Constitution, Amendment 1

Joint Commission Resources, Inc. (2024). The joint commission comprehensive accreditation manual for hospitals. RI.01.01.01. Oakbrook Terrace, IL: Author.

Oregon Administrative Rule §309-102-0100 to 309-102-150

Oregon Revised Statute § 182.162 to 182.168

Shared Services. (2023). *Tribal Consultation and Urban Indian Health Program Confer Policy*.

ODHSOHA 010-028. Author.